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Case Name: *Rajesh Raghani v. Classic Diamond & Jewelry, LLC et al.*

Case No.: 20CV366946

Plaintiff Rajesh Raghani (“Raghani”) has brought a motion for judgment on the pleadings (“JOP motion”) as to the operative first amended complaint (“FAC”). Defendants Samir Maharjan (“Maharjan”) and Classic Diamond & Jewelry, LLC (“Classic Diamond”) (together, “Defendants”) oppose the motion. By way of background, the court notes that on May 26, 2026, it denied Defendants’ motion to grant relief from the court’s previous order deeming certain admissions as true. As the court discusses further below, these admissions form the basis of Raghani’s JOP motion.

The court GRANTS judicial notice of Exhibit A, the court’s order “deeming matters in requests for admission admitted,” to Raghani’s request for judicial notice in support of Raghani’s JOP motion. (Raghani’s Request for Judicial Notice, Ex. A.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).)

The court GRANTS judicial notice of Exhibits A through H to Defendants’ request for judicial notice in support of Defendants’ opposition to Raghani’s JOP motion. (Defendants’ Request for Judicial Notice, Exs. A-H; see Evid. Code, § 452, subd. (d).)

“A plaintiff’s motion for judgment on the pleadings is analogous to a plaintiff’s demurrer to an answer and is evaluated by the same standards. The motion should be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the *defendant’s* allegations as being true.” (*Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331, internal citations omitted, emphasis original.) “Where the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted.” (*Barasch v. Epstein* (1957) 147 Cal.App.2d 439, 443, internal citation omitted.)

The court DENIES Raghani’s JOP motion. Raghani “seeks judgment for the amounts set forth in the complaint, including punitive damages as pleaded, on the ground that the complaint states facts sufficient to constitute causes of action and, because the matters in Plaintiff’s Request for Admissions have been deemed admitted, Defendants do not and cannot state facts sufficient to constitute a defense.” (Notice of JOP Motion, pp. 1:26-2:2.) “A plaintiff may recover judgment on a motion for judgment on the pleadings only if his complaint states facts sufficient to constitute a cause of action and the answer neither raises a material issue nor states a defense.” (*McClain v. City of South Pasadena* (1957) 155 Cal.App.2d 423, 430 (*McClain*), internal citation omitted). Here, Raghani’s motion states that the complaint’s allegations are “sufficient on their face,” lists the admissions deemed admitted, and states that the “deemed admissions conclusively establish Defendants’ liability on all causes of action.” (Memorandum of Points and Authorities in Support of JOP Motion (“MPA”), pp. 2:12-6:26; see also *id.* at p. 6:9-12 [“These admissions establish every element of Plaintiff’s wage-and-hour causes of action and negate any possible defense. Because the deemed admissions conclusively resolve liability and leave no material issue in dispute, judgment on the pleadings is appropriate under Code of Civil Procedure section 438.”].) Outside of listing the deemed admissions, Raghani’s JOP motion does not discuss how

the FAC pleads facts sufficient to constitute its nine causes of action—it does not, for example, list the elements or standard applicable to of any cause of action alleged—or how the admissions deemed admitted by the court relate to these causes of action. (See *Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 52 [the court is not required to “supply arguments for the litigants”], internal citations omitted.) On reply, Raghani lists the deemed admissions relevant to the FAC’s wage and hour claims, statutory record production claims, wrongful constructive termination claim, and unfair competition law claim, again without any substantive discussion of whether the FAC pleads any of these causes of action sufficiently. (Reply in Support of JOP Motion, pp. 3:20-5:20.) Moreover, to the extent Raghani intended this section of the reply brief to address Defendants’ point that Raghani’s JOP motion “fails to actually explain how the RFAs prove the elements of each cause of action,” courts do not consider points raised for the first time in a reply brief. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066.) Relatedly, the court notes that the FAC’s seventh cause of action alleges liability under Labor Code section 226.8. (FAC, ¶¶ 86-96.) But, as Defendants point out in their opposition, Labor Code section 226.8 does not recognize a private right action. (See Opposition to JOP Motion (“Opposition”), pp. 8:21-9:7; *Noe v. Superior Court* (2015) 237 Cal.App.4th 316, 341 [“Because section 226.8 does not provide a private right of action . . .”]; see also *id.* at p. 326 [“Thus, while the UCL and the PAGA claims might provide plaintiffs some form of remedy for a violation of section 226.8, those remedies are qualitatively different than the penalties they might recover in a direct action to enforce section 226.8.”].) Raghani has “withdrawn” its JOP motion to the seventh cause of action, seemingly on this basis. (Reply, p. 8:1-2.)

Moreover, Raghani argues that he is entitled to an award of punitive damages under Civil Code section 3294 because the FAC pleads punitive damages and the deemed admissions establish that Defendants engaged in intentional, willful, and malicious conduct. (MPA, pp. 7:1-8:2.) The only cause of action in the FAC that seeks punitive damages is the FAC’s ninth cause of action for wrongful termination in violation of public policy. (FAC, ¶ 113.) Therefore, the court disagrees with Raghani’s argument that the “operative complaint pleads punitive damages in connection with multiple causes of action, not solely the ninth.” (MPA, p. 7:22-23.) The court further notes that Civil Code section 3294 states that in “an action for the breach of an obligation not arising from contract, *where it is proven by clear and convincing evidence* that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a), emphasis added.) The deemed admissions discussed in Raghani’s brief do not establish by clear and convincing evidence that Defendants engaged in oppressive, fraudulent, or malicious conduct. (MPA, pp. 3:18-6:8.) The court is inclined to agree with Defendants that the deemed admissions “largely concern legal conclusions, rather than anything about the reasons or motivations for Defendants’ actions.” (Opposition, p. 7:9-12.) Nor, for that matter, is it clear to the court that a party can obtain punitive damages on a JOP motion. (See Civ. Code, § 3295, subd. (e) [“No claim for exemplary damages shall state an amount or amounts.”]; Civ. Code, § 3294, subd. (a) [“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence . . .”].)

This discussion of punitive damages raises a more general issue with Raghani’s JOP motion. A JOP motion is the functional equivalent of a demurrer. As such, the function of a JOP motion is to test the legal sufficiency of the pleadings. (*Richtek USA, Inc. v. uPI Semiconductor*

Corporation (2015) 242 Cal.App.4th 651, 660.) In determining a demurrer, a court “may look to affidavits filed on behalf of plaintiff, and the plaintiff’s answers to interrogatories . . . as well as to the plaintiff’s response to request for admissions.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604, internal citations omitted.) The court can “take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court.” (*Id.* at pp. 604-605, emphasis added.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Id.* at p. 605, internal citation omitted.) Furthermore, the court notes that a “defendant’s (or cross-defendant’s) motion for summary judgment tests the existence of evidence to support the complaint’s (or cross-complaint’s) allegations. . . . In a motion for summary judgment, judicial notice or an evidentiary admission or concession by the pleader/adversary can support the motion and thrust the burden on the pleader to come forward with facts in rebuttal. In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted. The same is true of evidentiary admissions or concessions.” (*Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 468, internal citations omitted; see *ibid.* [the “contrasting treatment of writings incorporated by reference which varies from express allegations of the pleading and the distinction in impact of judicial notice and evidentiary admissions or concessions in motions for summary judgment and motions for judgment on the pleadings . . .”].) Taking all of this into account, Raghani’s arguments based on the deemed admissions are more properly suited for a motion for summary judgment or adjudication, not for judgment on the pleadings.

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Case Name: *Tiwari v. Kaehr, et al.*

Case No.: 25CV467995

On April 12, 2022, plaintiff Prashant Tiwari (“Plaintiff”) filed a claim with the U.S. Equal Employment Opportunity Commission (“EEOC”) asserting that he was subjected to discrimination on the basis of race and national origin, a hostile work environment, retaliation and failure to prevent discrimination, a hostile work environment and retaliation that occurred most recently on February 8, 2022. On November 14, 2022, Plaintiff filed a demand for arbitration with Judicial Arbitration and Mediation Services Inc. (“JAMS”). After respondents Toyota Motor North America, Inc., Toyota Motor Corporation and Toyota Infotechnology